



File No.: EXP202210238

RESOLUTION OF ARCHIVE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On September 30, 2022, a complaint was filed with the Spanish Agency for Data Protection against GLOBAL DIGITAL MEDIA, S.A., A.A.A., and TUAREG MEDIA, S.L.

The reasons for the complaint are as follows:

The complainant states that after receiving a WhatsApp message requesting a sexual meeting, she discovered that her phone number appears in an advertisement published on the contact website follamigas.es. The affected party requests the immediate removal of her phone number from there.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the defendant/ALIAS for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The notification to the entity TUAREG MEDIA, S.L., which was carried out in accordance with the provisions of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) via electronic notification, was not received by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on October 15, 2022, as stated in the certificate in the file.

The notification, which was carried out in accordance with the provisions of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) via certified postal mail, was returned as "absent."

No response has been received to this notification.

THIRD: On December 2, 2022, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

The address subject to the complaint is:

***URL.1

The website where the complainant's phone number is published does not identify the responsible party and lacks a privacy policy. The only apparent contact method is indicated in the "Contact" section, where an English phone number, the email ***EMAIL.1, and the address ***ADDRESS.1 are mentioned.

Consulting the internet domain registry using the WHOIS tool, it is verified that the domain holder is A.A.A., who is the sole administrator of the entity TUAREG MEDIA, S.L., whose corporate purpose is "The development and exploitation of software applications and websites for the dissemination of classified advertisements," according to data from the Central Commercial Registry.

On December 15, 2022, it was verified that the complained content published on the site ***URL.2 has been removed.

In order to ascertain the registration process and the data collected, a user registration was made on the website. Upon completion of this registration, access to the "Legal Notices" page is granted, where the responsible party of the website is identified as GLOBAL DIGITAL MEDIA, S.A., with its registered office in Switzerland (hereinafter, GLOBAL).

Also, once the user is registered, access is granted to the document "General Conditions of Use," where the entity GLOBAL is again identified as responsible, and where, among other aspects, clauses

are included that meet the requirements established in Article 13 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, regarding the protection of natural persons concerning the processing of personal data and the free movement of such data.

Requested from GLOBAL information regarding the ownership and IP address of the creation of the profile ***PROFILE.1, on February 21, 2023, a report was received indicating that this profile was created in 2018 from an IP address in Argentina.

They add that the publishing entity of the website is TUAREG MEDIA, S.L. (hereinafter, TUAREG), providing their contact email address, and they add that they can provide data about the publication of the advertisement which they inform has been removed.

A request for information regarding the domain of the website under investigation was made to the Business Entity ***URL.3, confirming that the holder is A.A.A., who is the sole administrator of the entity TUAREG as recorded in the Central Commercial Registry (hereinafter, RMC).

Requests for information about the holder who created the complained profile were made to the entity TUAREG on January 12, 2023, via electronic notification, and on February 3, 2023, and March 13, 2023, via the

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postal services, the notification was not collected in any of the cases. The postal notifications were sent to the address listed in the RMC, which coincides with the address of the entity.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Transparency of information, communication, and modalities for exercising the rights of the data subject

Article 12 of the GDPR stipulates:

"1. The data controller shall take appropriate measures to provide the data subject with all information referred to in Articles 13 and 14, as well as any communication under Articles 15 to 22 and 34 relating to the processing, in a concise, transparent, intelligible, and easily accessible form, using clear and plain language, in particular any information specifically addressed to a child. The information shall be provided in writing or by other means, including, where appropriate, by electronic means. When requested by the data subject, the information may be provided orally, provided that the identity of the data subject is demonstrated by other means.

2. The data controller shall facilitate the exercise of the data subject's rights under Articles 15 to 22. In the cases referred to in Article 11, paragraph 2, the controller shall not refuse to act on the request of the data subject in order to exercise their rights under Articles 15 to 22, unless it can demonstrate that it is not in a position to identify the data subject.

3. The data controller shall provide the data subject with information regarding its actions based on a request under Articles 15 to 22, without undue delay and, in any case, within one month of receiving the request. This period may be extended by a further two months if necessary, taking into account the complexity and number of requests. The controller shall inform the data subject of any such extensions

within one month of receiving the request, indicating the reasons for the delay. When the data subject submits the request by electronic means, the information shall be provided by electronic means where possible, unless the data subject requests that it be provided otherwise.

4. If the data controller does not act on the request of the data subject, it shall inform them without undue delay, and at the latest within one month of receiving the request, of the reasons for not acting and of the possibility of lodging a complaint with a supervisory authority and of seeking judicial remedies.

5. The information provided under Articles 13 and 14 as well as any communication and any action taken under Articles 15 to 22 and 34 shall be provided free of charge. When requests are manifestly unfounded or excessive, particularly due to their repetitive nature, the data controller may:

- a) charge a reasonable fee based on the administrative costs incurred to provide the information or communication or to take the requested action, or
- b) refuse to act on the request.

The data controller shall bear the burden of demonstrating the manifestly unfounded or excessive nature of the request.

6. Without prejudice to the provisions of Article 11, when the data controller has reasonable doubts concerning the identity of the natural person making the request referred to in Articles 15 to 21, it may request the provision of additional information necessary to confirm the identity of the data subject.

7. The information that must be provided to data subjects under Articles 13 and 14 may be transmitted in combination with standardized icons that allow for a readily visible, intelligible, and clearly legible overview of the intended processing. Icons presented in electronic format shall be machine-readable.

8. The Commission shall be empowered to adopt delegated acts in accordance with Article 92 to specify the information to be presented through icons and the procedures for providing standardized icons."

III

Information to be provided when personal data is obtained from the data subject

Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, under which:

"1. When personal data relating to a data subject is obtained from the data subject, the data controller shall provide the data subject with all the information indicated below at the time the data is obtained:

- a) the identity and contact details of the controller and, where applicable, of its representative;

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- b) the contact details of the data protection officer, if applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) when the processing is based on Article 6, paragraph 1, letter f), the legitimate interests of the controller or a third party;
- e) the recipients or categories of recipients of the personal data, if applicable;
- f) if applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49, paragraph 1, second sentence, reference to the appropriate or suitable safeguards and the means to obtain a copy of these or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the controller shall provide the data subject, at the time when the personal data are obtained, with the following information necessary to ensure fair and transparent data processing:

- a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period;

- b) the existence of the right to request from the controller access to personal data concerning the data subject, and their rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability;
- c) when the processing is based on Article 6, paragraph 1, letter a), or Article 9, paragraph 2, letter a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and has been informed of the possible consequences of not providing such data;
- f) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the controller intends to further process personal data for a purpose other than that for which they were collected, it shall provide the data subject, prior to that further processing, with information on that other purpose and any other relevant information pursuant to paragraph 2. The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information.

IV

Legitimacy for processing

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The phone number on a contact page can identify or make a person identifiable, which constitutes the processing of personal data and, therefore, the person doing so must rely on one of the legitimizing grounds indicated in Article 6 of the GDPR. In these cases, as in the case subject to the complaint, the usual legitimizing ground is generally consent. It is the person processing the personal data that can be viewed without any limitation who must demonstrate that they have that consent.

In order for this processing to be carried out lawfully, the provisions of Article 6.1 of the GDPR must be fulfilled, which states:

“1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.

V

Conclusion

To identify the person or persons who were publishing the complainant's phone number on a contact page, preliminary investigative actions were carried out, as established by Article 67 of the LOPDGDD,

which states the following:

<<1. Before adopting the decision to initiate proceedings, and once the complaint has been admitted for processing, if any, the Spanish Data Protection Agency may carry out preliminary investigative actions in order to achieve a better determination of the facts and circumstances justifying the processing of the procedure.

The Spanish Data Protection Agency shall act in any case when it is necessary to investigate processing involving mass traffic of personal data.

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2. The preliminary investigative actions shall be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and shall not exceed a duration of twelve months from the date of the admission agreement or from the date of the agreement deciding its initiation when the Spanish Data Protection Agency acts on its own initiative or as a result of communication sent to it by the supervisory authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law.>>

After conducting the investigations mentioned in the Facts, the following has been concluded:

The content was removed without a precautionary measure for content removal being sent.

The entity owning the website where the advertisement was published has been identified, and the entity responsible for the content of the website (editor) has also been identified.

Regarding the ownership and IP address of the creation of the profile ***PROFILE.1, which includes the phone number subject to the complaint, GLOBAL indicated that this profile was created in 2018 from an IP address in Argentina; therefore, the person responsible for the publication cannot be identified.

Thus, as it has not been possible to attribute responsibility for the processing in the publication of the images, in accordance with what has been indicated, by the Director of the Spanish Data Protection Agency, IT IS AGREED:

FIRST: TO FILE the present actions.

SECOND: TO NOTIFY this resolution to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which ends the administrative procedure as provided for in Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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